

NO FEE
OCT 29 2015
BRONX COUNTY
CLERK'S OFFICE

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE BRONX

-----x
SHANTEL MARTE AND HECTOR FELICIANO,

Plaintiffs,

- against -

THE CITY OF NEW YORK, NEW YORK POLICE
DEPARTMENT, POLICE OFFICER GUY GARGANO,
POLICE OFFICER JOHN DOE AND POLICE OFFICER
JOHN ROE

Defendants.
-----x

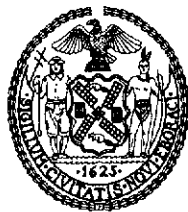
NOTICE OF MOTION

Index No. 23021/2013

City File No. 2013-029330

PLEASE TAKE NOTICE, that upon the annexed affirmation of **JULIA C. MORRIS** dated October 23, 2015 and the exhibits annexed thereto, and all of the papers, pleadings and proceedings heretofore had and filed herein, defendant THE CITY OF NEW YORK (hereinafter as "City"), will move this Court before IAS Part 3, located at 851 Grand Concourse, Bronx, NY 10451, on November 18, 2015 at 9:30 a.m. of that day or as soon thereafter as counsel can be heard for an Order:

- (1) pursuant to C.P.L.R. §3212, granting defendants' summary judgment with regard to causes of action sounding in false arrest, detainment and imprisonment, and;
- (2) pursuant to C.P.L.R. §3212, granting summary judgment with regard to the causes of action sounding in malicious prosecution, and;
- (3) pursuant to C.P.L.R. §3212, granting summary judgment with regards to claims for assault and battery, and;
- (4) pursuant to C.P.L.R. §3211(1)(a)(7) dismissing the negligence claims for failure to plead a viable cause of action, and;



THE CITY OF NEW YORK
LAW DEPARTMENT
TORT DIVISION
100 CHURCH STREET, 6th FLOOR
NEW YORK, NY 10007

ZACHARY W. CARTER
Corporation Counsel

JULIA C. MORRIS
PHONE: (212) 356-2106
FAX: (212) 788-4092

October 23, 2015

Bronx County Clerks Office
851 Grand Concourse
Bronx, New York 10451

Re: Shantel Marte et ano. v. The City of New York,
Index No: 23021/2013
City File No. 2013-029330

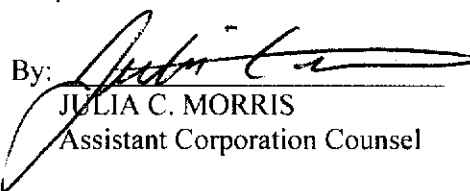
Dear Sir/Madam:

The Corporation Counsel is exempt from any payment of fees, court costs, or certification costs relating to the filing or transfer of an action, and any fees for the issue of an index number, perfection of an appeal, request for judicial intervention, or any other court fee relating to the defense of an action against the municipality of New York.

Accordingly, please accept the above papers. Thank you for you attention to this matter.

Sincerely yours,

ZACHARY CARTER
Corporation Counsel

By: 
JULIA C. MORRIS
Assistant Corporation Counsel